

108	Mifflin v. Raskin, 2025-01517521	MOTION TO STRIKE PUNITIVE DAMAGES CLAIMS – GRANTED WITH 20 DAYS LEAVE TO AMEND Defendants Joseph Ryan Raskin and Raskin Built, LLC move to strike plaintiffs Justin Mifflin and Camille Birrer’s prayer for punitive damages in Paragraph 14., subdivision a.(2) of their complaint. (ROA 16) Motion to Strike is GRANTED with 20 days leave to amend. (Code Civ. Proc., §435; Civ. Code, § 3294.) Here, there are no detailed facts pled within the complaint at all, let alone facts supporting an intentional tort cause of action or a claim for punitive damages. In the Opposition, Plaintiffs make arguments which are outside the four corners of the Complaint, which is not permissible in connection with a motion to strike. (Code Civ. Proc., § 437; CPF Agency Corp. v. R&S Towing Service (2005) 132 Cal.App.4th 1014, 1032 [grounds for motion to strike must appear on the face of the pleading under attack, or from matter which the court may judicially notice].) The Declaration of Attorney Justin Trad, and exhibits attached thereto were not considered. Defendant to give notice.
109	Miramar Food Hall Real Estate LLC v Big Picture Concepts Design LLC, 2023-01366805	DEFAULT PROVE-UP HEARING
110	Oakland JMO, LLC. vs. Hybrid Battery Place, Inc., 2022-01271085	MOTION FOR SUMMARY JUDGMENT/ ADJUDICATION Defendant State Farm General Insurance Company (“Defendant”) filed a motion for summary judgment as to Plaintiff Hybrid Battery Inc.’s cause of action for breach of the implied covenant of good faith and fair dealing and claim for punitive damages.

		Twice, Plaintiff Hybrid Battery Inc. has attempted to file a Request for Dismissal with Prejudice of the Entire Action. (ROAs 334 and 335.) The first attempt was on 05/28/2026 and the second attempt was on 06/10/2026. Based on these filings, it appears that the motion for summary judgment should be vacated and/or deemed moot. At the hearing, the parties shall be prepared to discuss whether Plaintiff Hybrid Battery Inc.'s operative Complaint should be dismissed.
111		OFF CALENDAR
112	SeaNet Company, Inc. v. Perley, 2024-01398295	DEMURRER TO SECOND AMENDED CROSS-COMPLAINT BY CROSS-DEFENDANTS SEANET & HARRY'S MARINE – SUSTAINED IN PART WITH LEAVE TO AMEND, AND SUSTAINED IN PART WITHOUT LEAVE TO AMEND MOTION TO STRIKE BY CROSS-DEFENDANTS SEANET & HARRY'S MARINE – GRANTED DEMURRER TO SECOND AMENDED CROSS-COMPLAINT BY CROSS-DEFENDANT VOLVO PENTA OF THE AMERICAS - SUSTAINED IN PART WITH LEAVE TO AMEND, AND SUSTAINED IN PART WITHOUT LEAVE TO AMEND MOTION TO STRIKE BY CROSS-DEFENDANT VOLVO PENTA OF THE AMERICAS – GRANTED The underlying complaint alleges a breach of contract by Perley, the buyer of a yacht, to maintain the yacht under a use agreement. Perley filed a cross-complaint against the seller of the yacht (SeaNet), the manufacturer of the yacht's engine (Volvo), and the engine repair facility (Harry's Marine) for various claims involving breach of contract, breach of warranty, fraud, and statutory violations. The second amended complaint (SACC) is the operative pleading here. SeaNet and Harry's filed a